

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Spencer Migotsky	Team: Squad #01	CCRB Case #: 201412107	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 07/03/2014 5:00 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 1/3/2016	Precinct: 113		
Date/Time CV Reported Wed, 12/03/2014 2:01 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 12/03/2014 2:01 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. Officers			NARCBQN
2. DT3 Jason Hernandez	4731	941898	NARCBQN
3. DT3 Jason Levy	06945	928639	NARCBQN

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. DT3 Juan Moreno	07175	930779	NARCBQN
2. DT3 Joseph Petrosino	4847	946115	NARCBQN
3. DT3 Clifton Clarke	07333	916961	NARCBQN

Officer(s)	Allegation	Investigator Recommendation
A . Officers	Abuse: Officers entered and searched § 87(2)(b)	A . Exonerated
B . Officers	Discourtesy: Officers spoke rudely to § 87(2)(b) and § 87(2)(b)	B . Officer(s) Unidentified
C . DT3 Jason Hernandez	Abuse: Det. Jason Hernandez refused to show a search warrant to § 87(2)(b)	C . Miscellaneous - Subject Resigned
D . DT3 Jason Levy	Discourtesy: Det. Jason Levy spoke rudely to § 87(2)(b) and § 87(2)(b)	D . Unsubstantiated

Case Summary

§ 87(2)(b) and § 87(2)(b) decided to file this complaint five months after it originally occurred on the advice of their lawyer.

On July 3, 2014, at approximately 5:00 am, § 87(2)(b) and her son, § 87(2)(b) (24), were sleeping in the same bed in their apartment at § 87(2)(b) in Queens when they heard a loud noise at the door. There was another boom and they heard people enter their apartment (**Allegation A**). Approximately eight police officers from Queens North Narcotics entered their bedroom, surrounded their bed, and pointed their guns at § 87(2)(b) and her son (also **Allegation A**). An officer said “freeze don’t fucking move” (**Allegation B**). § 87(2)(b) asked what was going on and an officer said “shut the fuck up, don’t ask no fucking questions” (also **Allegation B**). § 87(2)(b) asked if the officers had a warrant and an officer said “we have a warrant don’t worry about it” and “you ain’t seeing shit”. A warrant was never shown (**Allegation C**). § 87(2)(b) and her son were handcuffed by an officer.

§ 87(2)(b) and her son were taken from her bedroom to her living room where Det. Levy told them to “sit the fuck down” (**Allegation D**). § 87(2)(b) asked Det. Clarke to see a warrant and he told § 87(2)(b) that he could not see it.

§ 87(2)(b) and her son were then taken to the 113th Precinct stationhouse. They were given DATs for § 87(2)(a) 160.50. When § 87(2)(b) and her son returned to the apartment, they found that their couch, television, clothing, and chair were damaged (also **Allegation A**) (Board Review 01 and 02).

§ 87(2)(b) also alleged that some money and rings were missing when she returned to her apartment. § 87(2)(g).

Mediation, Civil and Criminal Histories

This case was unsuitable for mediation because property was damaged. Notices of claim for

§ 87(2)(b) and § 87(2)(b) show that they have filed a lawsuit § 87(2)(g)

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is the only complaint filed by § 87(2)(b) and § 87(2)(b) (Board Review 03).
- Det. Hernandez resigned from the NYPD as of February 6, 2015 (Board Review 10).
- Det. Levy has been a member of the NYPD for thirteen years and has five CCRB cases and seven allegations against him. He has no prior discourtesy allegations and his single gun point allegation was closed as complaint withdrawn.

Finding and Recommendations

Explanation of Subject Officer Identification

Det. Hernandez of Queens North Narcotics is listed as the requesting officer on the search warrant (NYPD Document 01). It is undisputed that officers from his command entered

§ 87(2)(b)

§ 87(2)(g)

§ 87(2)(b) alleged that an officer said “shut the fuck up, don’t ask no fucking questions” and “you ain’t seeing shit.” § 87(2)(b) said that an officer with a similar description said “shut the fuck up.” § 87(2)(b) described that officer as a muscular white male over 5’10” with dark blond hair in his early-late 40s wearing blue jeans while her son described him as a 6’1” skinny white male with blond hair, blue-green eyes, and a lightly trimmed moustache, wearing a dark blue shirt with no sleeves (Board Review 01 and 02). No officer matches these descriptions or comes close to an amalgamation of the two descriptions. The only white male officer with blond hair who was there was Det. Bohringer. However, he is heavyset according to his photo and could not reasonably be mistaken for skinny. Furthermore, he is § 87(2)(b) which is significantly shorter than 5’10” let alone 6’1” (NYPD Document 02).

§ 87(2)(b) also alleged that a 5’4”-5’5” Asian officer said “freeze, don’t fucking move.” There was no Asian officer present (Board Review 01).

§ 87(2)(g)

§ 87(2)(b) stated that she asked the officers, all of whom she maintained were in her bedroom, whether they had a warrant (Board Review 01). § 87(2)(g)

§ 87(2)(b) stated that an officer told her and her son to “sit the fuck down” on a couch in her living room. She described that officer as a 5’6”-5’7” white male with a small frame in his early 30s (Board Review 01). § 87(2)(g)

Recommendations

Allegations Not Pleaded

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Allegations Pleaded

Allegation A – Officers entered and searched § 87(2)(b)

Officers from Queens North Narcotics entered and searched § 87(2)(b) in Queens on July 3, 2014. They were in possession of a valid search warrant § 87(2)(b), which was issued on § 87(2)(b) permitting them to search the location (NYPD Document 01). Therefore, it is recommended that **Allegation A** be closed as **exonerated**.

Allegation B – Officers spoke rudely to § 87(2)(b) **and** § 87(2)(b)

According to § 87(2)(b) and § 87(2)(b) officers said “shut the fuck up, don’t ask no fucking questions,” “you ain’t seeing shit,” “shut the fuck up,” and “freeze, don’t fucking move” (Board Review 01 and 02). Det. Petrosino, Det. Hernandez, Det. Moreno, Det. Levy, and Det. Clarke did not recall hearing any officer make the alleged statements (Board Review 05-09).

§ 87(2)(g)

it is recommended that **Allegation B** be closed as **officer unidentified**.

Allegation C - Det. Jason Hernandez refused to show a search warrant to § 87(2)(b)

§ 87(2)(b) alleged that she asked the officers to see a search warrant and that she was never shown one (Board Review 01). Det. Hernandez acknowledged that he was carrying the search warrant on him when he entered § 87(2)(b) in Queens but did not recall anyone asking to see a search warrant (Board Review 05). Regardless, Det. Hernandez resigned from the NYPD. Therefore, it is recommended that **Allegation C** be closed as **miscellaneous - subject resigned**.

Allegation D – Det. Levy spoke rudely to § 87(2)(b) **and** § 87(2)(b)

§ 87(2)(b) alleged that an officer matching Det. Levy’s description told her and her son to “sit the fuck down.” § 87(2)(b) said that the officers had them sit on the couch but did not himself mention whether an officer used profanity while doing so. Det. Levy did not recall any interaction between himself and any civilians and no officer interviewed recalled Det. Levy or anyone else making that statement (Board Review 05-09). § 87(2)(g)

it is recommended that **Allegation D** be closed as **unsubstantiated**.

Pod: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____

Title/Signature

Print

Date